

**BEFORE THE
FEDERAL MARITIME COMMISSION**

EUROMARKET DESIGNS, INC.,

Complainant,

v.

MSC MEDITERRANEAN SHIPPING COMPANY)
SA, OCEAN NETWORK EXPRESS PTE. LTD.
EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#011982), EVERGREEN
MARINE CORP. (TAIWAN) LTD., EVERGREEN
MARINE (UK) LIMITED, ITALIA MARITTIMA
SpA, EVERGREEN MARINE (HONG KONG)
EVERGREEN MARINE (SINGAPORE) PTE, LTD.
HMM COMPANY LIMITED, MAERSK A/S, CMA
CGM S.A., APEX MARITIME CO, INC., CHINA
UNITED TRANSPORT, INC., COSCO SHIPPING
LINES CO., LTD., AND WAN HAI LINES, LTD.,

Respondents.

DOCKET NO. 25-03

VERIFIED ANSWER AND AFFIRMATIVE DEFENSES

COMES NOW, Respondent, APEX Maritime Co, Inc. (APEX) by and through its undersigned counsel and files this, its Verified Answer to the Complaint of Complainant Euromarket Design, Inc. (“Complainant” or “EDI”) and states as follows with reference to the paragraph numbers in the original Verified Complaint (“Complaint”):

I. INTRODUCTION

1. APEX Admit insofar as the allegations speak for themselves. Otherwise denied.
2. APEX Admit insofar as the allegations speak for themselves. Otherwise denied.
3. Denied.
4. APEX is without sufficient knowledge of the allegations and therefore denies same.
5. APEX is without sufficient knowledge of the allegations and therefore denies same.
6. APEX is without sufficient knowledge of the allegations and therefore denies same.
7. Denied.
8. Denied.
9. Denied.
10. Denied.
11. Denied.
12. Denied.
13. Denied.
14. APEX is without sufficient knowledge of the allegations and therefore denies same.
15. Admit insofar as the allegations speak for themselves. Otherwise denied.

II. THE COMPLAINANT

16. APEX is without knowledge of the allegations and therefore denies same.

III. THE RESPONDENTS

17. APEX is without sufficient knowledge of the allegations and therefore denies same.
18. APEX is without sufficient knowledge of the allegations and therefore denies same.
19. APEX is without sufficient knowledge of the allegations and therefore denies same.

20. APEX is without sufficient knowledge of the allegations and therefore denies same.
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30. APEX is without sufficient knowledge of the allegations and therefore denies same.
31. APEX is without sufficient knowledge of the allegations and therefore denies same.
32. APEX is without sufficient knowledge of the allegations and therefore denies same.
34. Admit.
35. APEX is without sufficient knowledge of the allegations and therefore denies same.
36. APEX is without sufficient knowledge of the allegations and therefore denies same.
37. APEX is without sufficient knowledge of the allegations and therefore denies same.
38. APEX is without sufficient knowledge of the allegations and therefore denies same.
39. APEX is without sufficient knowledge of the allegations and therefore denies same.
40. APEX is without sufficient knowledge of the allegations and therefore denies same.

IV. JURISDICTION AND LEGAL AUTHORITY

41. Denied.
42. APEX is without sufficient knowledge of the allegations and therefore denies same.

43. APEX is without sufficient knowledge of the allegations and therefore denies same.
44. APEX is without sufficient knowledge of the allegations and therefore denies same.
45. APEX is without sufficient knowledge of the allegations and therefore denies same.
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48. APEX is without sufficient knowledge of the allegations and therefore denies same.
49. APEX is without sufficient knowledge of the allegations and therefore denies same.
50. APEX is without sufficient knowledge of the allegations and therefore denies same.
51. Admit insofar as the FMC has jurisdiction over APEX in its capacity as an NVOCC

for such services. Otherwise denied.

52. Denied.
53. Denied.

V. THE MATTERS COMPLAINED OF (ALLEGED FACTS)

54. APEX is without sufficient knowledge of the allegations and therefore denies same.
55. APEX is without sufficient knowledge of the allegations and therefore denies same.
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61. APEX is without sufficient knowledge of the allegations and therefore denies same.
62. Denied.
63. APEX is without sufficient knowledge of the allegations and therefore denies same.

64. APEX is without sufficient knowledge of the allegations and therefore denies same.
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116. APEX is without sufficient knowledge of the allegations and therefore denies same.
117. APEX is without sufficient knowledge of the allegations and therefore denies same.
118. APEX is without sufficient knowledge of the allegations and therefore denies same.
119. APEX Admit insofar as the allegations speak for themselves. Otherwise denied.
120. APEX Admit insofar as the allegations speak for themselves. Otherwise denied.
121. APEX Admit insofar as the allegations speak for themselves. Otherwise denied.
122. APEX is without sufficient knowledge of the allegations and therefore denies same.
123. APEX is without sufficient knowledge of the allegations and therefore denies same.
124. APEX is without sufficient knowledge of the allegations and therefore denies same.
125. APEX is without sufficient knowledge of the allegations and therefore denies same.
126. APEX is without sufficient knowledge of the allegations and therefore denies same.
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128. APEX is without sufficient knowledge of the allegations and therefore denies same.
129. APEX is without sufficient knowledge of the allegations and therefore denies same.
130. APEX is without sufficient knowledge of the allegations and therefore denies same.
131. APEX is without sufficient knowledge of the allegations and therefore denies same.
132. APEX is without sufficient knowledge of the allegations and therefore denies same.

- [illegible]

156. APEX is without sufficient knowledge of the allegations and therefore denies same.

157. APEX denies the first sentence. Regarding the second third and fourth sentences, APEX admits that it did have communications with Complainant, is without sufficient knowledge of the allegations of these specific communications and therefore denies them, and denies the characterization here that APEX was responsible.

158. APEX denies the characterization, but admits that where any cancellation fee was charged it was a reasonable amount and was a pass through from the ocean carriers to the shipper with no markup from APEX.

159. APEX denies the conclusion and otherwise is without sufficient knowledge of the allegations and therefore denies same.

160. APEX admits that it did pass through to Claimant detention charges that were billed by the ocean carrier but denies the specific amount. Regarding the allegation that such charges were improper, this is a legal conclusion that does not require a response but, if a response is required, they are denied. APEX denies the allegations of demurrage.

161. APEX is without sufficient knowledge of the allegations and therefore denies same.

162. APEX is without sufficient knowledge of the allegations and therefore denies same.

163. APEX is without sufficient knowledge of the allegations and therefore denies same.

164. APEX is without sufficient knowledge of the allegations and therefore denies same.

165. APEX is without sufficient knowledge of the allegations and therefore denies same.

166. APEX is without sufficient knowledge of the allegations and therefore denies same.

167. APEX is without sufficient knowledge of the allegations and therefore denies same.

168. APEX is without sufficient knowledge of the allegations and therefore denies same.

169. APEX is without sufficient knowledge of the allegations and therefore denies same.

170. APEX is without sufficient knowledge of the allegations and therefore denies same.
171. APEX is without sufficient knowledge of the allegations and therefore denies same.
172. Denied insofar as the quotation speaks for itself.
173. This paragraph contains a legal conclusion to which no response is required.
174. APEX is without sufficient knowledge of the allegations and therefore denies same.
175. APEX is without sufficient knowledge of the allegations and therefore denies same.
176. Denied.
177. APEX is without sufficient knowledge of the allegations and therefore denies same.
178. APEX is without sufficient knowledge of the allegations and therefore denies same.
179. Denied.
180. Denied.
181. APEX is without sufficient knowledge of the allegations and therefore denies same.
182. APEX is without sufficient knowledge of the allegations and therefore denies same.
183. APEX is without sufficient knowledge of the allegations and therefore denies same.
184. APEX is without sufficient knowledge of the allegations and therefore denies same.
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186. APEX is without sufficient knowledge of the allegations and therefore denies same.
187. APEX is without sufficient knowledge of the allegations and therefore denies same.
188. APEX is without sufficient knowledge of the allegations and therefore denies same.
189. APEX is without sufficient knowledge of the allegations and therefore denies same.
190. APEX is without sufficient knowledge of the allegations and therefore denies same.
191. APEX is without sufficient knowledge of the allegations and therefore denies same.
192. APEX is without sufficient knowledge of the allegations and therefore denies same.

193. APEX is without sufficient knowledge of the allegations and therefore denies same.

194. APEX admit the allegations in the first sentence insofar as they speaks for themselves and is otherwise denied. The remainder of this paragraph contains legal conclusions to which no response is required.

VI. CAUSES OF ACTION

COUNT I : VIOLATION OF 46 U.S.C. § 41102(c)

AGAINST THE SERVICE CONTRACT RESPONDENTS

195. APEX repeats each of its above responses accordingly.

196. APEX is without sufficient knowledge of the allegations and therefore denies same.

COUNT II: VIOLATION OF 46 U.S.C. § 41102(c) & 46 C.F.R § 545.5

AGAINST ALL RESPONDENTS

197. APEX repeats each of its above responses accordingly.

198. This paragraph contains a legal conclusion to which no response is required, and is otherwise denied.

199. This paragraph contains a legal conclusion to which no response is required, and is otherwise denied.

COUNT III: VIOLATION OF 46 U.S.C. § 41104(a)(2)

AGAINST THE SERVICE CONTRACT RESPONDENTS

200. APEX repeats each of its above responses accordingly.

201. APEX is without sufficient knowledge of the allegations and therefore denies same.

COUNT IV: VIOLATION OF 46 U.S.C. § 41104(a)(10)

AGAINST ALL RESPONDENTS

202. APEX repeats each of its above responses accordingly.

203. APEX is without sufficient knowledge of the allegations and therefore denies same.

VII. CAUSATION

204. APEX is without sufficient knowledge of the allegations and therefore denies same.

205. APEX is without sufficient knowledge of the allegations and therefore denies same.

206. Denied.

207. Denied.

VIII. REPARATIONS SOUGHT

208. Denied.

209. APEX is without sufficient knowledge of the allegations and therefore denies same.

210. APEX is without sufficient knowledge of the allegations and therefore denies same.

211. Denied.

212. APEX is without sufficient knowledge of the allegations and therefore denies same.

213. APEX is without sufficient knowledge of the allegations and therefore denies same.

214. APEX is without sufficient knowledge of the allegations and therefore denies same.

215. APEX is without sufficient knowledge of the allegations and therefore denies same.

216. APEX is without sufficient knowledge of the allegations, which contain legal conclusions requiring no response, and denies same.

217. Denied.

AFFIRMATIVE DEFENSES

1. The Commission lacks subject matter jurisdiction.
2. APEX committed no Shipping Act violation and is not liable to Claimant on the cause of action alleged in the Complaint.
3. Complainant lacks standing to seek reparations.
4. The claims are barred in whole or in part by the statute of limitations.
5. The claims are barred in whole or in part by the doctrines of laches, waiver, or estoppel.
6. The Complaint fails to state a claim for which relief may be granted.
7. APEX committed no Shipping Act violation and is not liable to Claimant on the cause of action alleged in the Complaint.
8. If there was any loss to the Claimant as alleged in the Complaint, Answering Respondents are not liable to Claimant by reason of the provisions contained in the bill(s) of lading, contract of carriage, charter party, applicable tariffs, special contract, service contract, or dock receipt
9. The conduct which is the subject of the complaint does not constitute a practice within the meaning of 46 U.S.C. §§ 41104(a) or 41102.
10. The Complaint fails to allege the essential elements of 46 U.S.C. § 41102(c), 46 U.S.C. § 41104(a)(2); 56 U.S.C. § 41104(a)(10), and/or 46 C.F.R. § 545.5.
11. The claims are barred in whole or in part to the extent same seeks recovery under the Ocean Shipping Reform Act for acts or omissions that are alleged to have occurred prior to the passage of same.
12. APEX committed no Shipping Act violation and is not liable to Claimant on the cause of action alleged in the Complaint.

13. All or some of the charges which are the subject of the complaint were imposed by and paid to persons other than APEX.
14. Claimant has failed to mitigate its damages.
15. Complainant is barred from recovering by the doctrine of unclean hands.
16. Any demurrage or detention charges complained of was due in whole or in part to the acts and/or omissions of the motor carrier(s), ocean carriers, terminal operators, warehousemen, rail carriers, and/or the cargo interest(s).
17. Complainant is not entitled to reparations because it has suffered no harm.
18. Respondent's conduct was reasonable under the totality of the circumstances.
19. Respondent claims the right of setoff.
20. Answering Respondents reserve their right to amend this Answer and/or to plead any additional affirmative defenses and/or to bring a third-party claim as the facts may warrant.
21. The Complainant's claims against the various Respondents do not arise from common transactions or occurrences, and Answering Respondents reserve their right to request that they be severed, accordingly.
22. The Complainant's claims are so vague and/or ambiguous as to require particularization, and APEX reserve their right to request that they be amplified accordingly.
23. APEX denies that any oral hearing is warranted.

WHEREFORE, APEX pray that an order be made dismissing the Complaint with prejudice and award Respondent reasonable costs, fees including attorney fees and disbursements in

accordance with 46 U.S.C. § 41305, 46 C.F.R. § 502.254, and § 502.318(b), as well as such other and further relief as may be deemed just and proper.

Dated: New York, New York
February 3, 2025

Respectfully submitted,

Link Martyn PLLC
Attorneys for Respondents
APEX MARITIME CO., INC. (FMC# 008937)

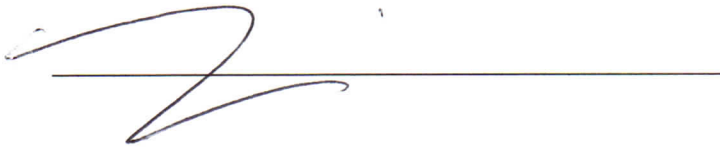
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E-Mail: jmartyn@linkmartyn.com

VERIFICATION

I, Timothy Saling, am an authorized signatory of Respondent APEX Maritime Co. Inc., 877 Mahler Rd, 2nd Floor, Burlingame, CA 94010 United States, email: Tim.Saling@kerryapex.com.

I have read the foregoing Verified Answer and believe, to the best of my knowledge, information, and belief, including information received from others, that the facts stated therein are true and correct. I declare under penalty of perjury that the foregoing is true and correct. Executed on February 3, 2025.

A handwritten signature in dark ink, appearing to be 'Timothy Saling', is written over a solid horizontal line. The signature is stylized with a large, sweeping initial 'T'.